

STATE OF INDIANA	)	IN THE LAKE CIRCUIT/SUPERIOR COURT
	) SS:	
COUNTY OF LAKE	)	
 CARLITA MCCRAY,	)	
Plaintiff,	)	
	)	
v.	)	CAUSE NO.:
	)	
JAMES STRAIT and,	)	
TJ EXPRESS LLP.	)	
Defendants.	)	

COMPLAINT FOR DAMAGES

FACTS COMMON TO ALL COUNTS

Comes now the Plaintiff, CARLITA MCCRAY, by counsel, KATHERINE S. SARKISIAN of SARKISIAN, SARKISIAN & ASSOCIATES, P.C., and for her cause of action against the Defendants, JAMES STRAIT and TJ EXPRESS LLP., alleges and states as follows:

1. That the collision complained of herein occurred within the boundaries of Lake County, State of Indiana.
2. That at all times relevant herein, CARLITA MCCRAY was an individual who is a legal resident of the State of Michigan.
3. That at all times relevant herein, JAMES STRAIT was an individual who upon information and belief, is a legal resident of Iowa.
4. That at all times relevant herein, TJ EXPRESS LLP was a for-profit business, licensed and/or authorized to transact business within the State of Indiana.
5. That at all times relevant herein, JAMES STRAIT is the owner and operator of TJ EXPRESS LLP.
6. That on July 18, 2022, at approximately 4:31 p.m., the Plaintiff, CARLITA MCCRAY, was operating a 2018 Dodge Journey west on Interstate 80 near mile marker 9.5, in city

of Gary, County of Lake, State of Indiana.

7. That on said date and time, the Defendant, JAMES STRAIT, operated TJ EXPRESS LLP.'S 2004 Peterbilt semi-tractor trailer, under the dispatch and control of TJ EXPRESS LLP.
8. That on said date and time, JAMES STRAIT, operated the semi-tractor trailer west on Interstate 80 near mile marker 9.5, in city of Gary, County of Lake, State of Indiana.
9. That on said date and time, JAMES STRAIT, operated the semi-tractor trailer west on Interstate 80 near mile marker 9.5, immediately behind the vehicle operated by CARLITA MCCRAY.
10. That on said date and time, JAMES STRAIT, failed to yield, slow, and/or stop his semi-tractor trailer, causing it to strike the rear of the vehicle being operated by the Plaintiff.
11. That at all times relevant herein, TJ EXPRESS LLP owned the tractor-trailer operated by JAMES STRAIT.
12. That at all times relevant herein, the semi-tractor displayed a DOT No. 01956642.
13. That at all times relevant herein, the semi-tractor displayed TJ EXPRESS LLP.'s logo.
14. That at all times relevant herein, TJ EXPRESS LLP. was an interstate motor carrier subject to the Federal Motor Carrier Safety Regulations, operating through and within the State of Indiana.
15. That at all times relevant herein, there was in full force and effect in the State of Indiana I.C. § 8-2.1-24-18, a statute incorporating by reference, *inter alia*, Parts 390, 391, 392, 393, 395, and 396 of the Federal Motor Carrier Safety Regulations (hereinafter "FMCSRs").
16. That at all times relevant herein, JAMES STRAIT was a professional truck driver

employed by TJ EXPRESS LLP.

17. That at all times relevant herein, JAMES STRAIT was an employee or agent of TJ EXPRESS LLP
18. That at all times relevant herein, JAMES STRAIT and/or TJ EXPRESS LLP were subject to and required to comply with the FMCSRs.
19. On and before July 18, 2022, TJ EXPRESS LLP. was subject to the Federal Motor Carrier Safety Regulations and owed CARLITA MCCRAY and others lawfully traveling on the roadway, a duty to use reasonable care.
20. On and before July 18, 2022, JAMES STRAIT was subject to the Federal Motor Carrier Safety Regulations and owed CARLITA MCCRAY and others lawfully traveling on the roadway, a duty to use reasonable care.
21. On and before July 18, 2022, TJ EXPRESS LLP. and JAMES STRAIT, breached the foregoing duties and were negligent.
22. On July 18, 2022, as a direct and proximate result of the aforesaid negligence, TJ EXPRESS LLP., and JAMES STRAIT, caused their semi-tractor trailer to crash into the vehicle of CARLITA MCCRAY'S car with great force and violence.
23. As a direct and proximate result of the foregoing crash and the conduct of TJ EXPRESS LLP. and JAMES STRAIT, CARLITA MCCRAY was physically injured, suffered emotional distress; sustained other permanent and severe personal injuries; she incurred and will incur ambulance, hospital, diagnostic, surgical, therapeutic, pharmaceutical, and other medical expenses; she suffered and will suffer physical pain, mental suffering, terror, fright, loss of enjoyment of life, and permanent impairment; she lost time or wages and impairment of her earnings capacity; and she incurred other injuries and damages of

a personal and pecuniary nature.

24. At all times relevant herein, TJ EXPRESS LLP., exerted authority over JAMES STRAIT's operation of its semi-tractor, the means and methods employed by JAMES STRAIT in his work, and provided him with the equipment, including but not limited to, the tractor-trailer, motor carrier license, and load necessary to accomplish his assigned tasks. As JAMES STRAIT's employer(s), agent(s), and/or principal(s), TJ EXPRESS LLP. is vicariously liable for his negligence and conduct.

WHEREFORE, CARLITA MCCRAY seeks the entry of judgement in his favor and against TJ EXPRESS LLP. and JAMES STRAIT, and each of them for compensatory damages, in an amount to be determined herein, pre-judgment interest and post-judgment interest, for the costs of this action, and for any and all other relief that the Court and Jury may deem proper under the circumstances.

SARKISIAN, SARKISIAN & ASSOCIATES PC
Attorney for Plaintiff

/s/: Katherine S. Sarkisian

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COUNT I – NEGLIGENCE

Comes now the Plaintiff, CARLITA MCCRAY, by counsel, KATHERINE S. SARKISIAN of SARKISIAN, SARKISIAN & ASSOCIATES, P.C., and for her cause of action against the Defendant, JAMES STRAIT, alleges and states as follows:

25. That the Plaintiff, CARLITA MCCRAY, re-alleges the allegations contained in Paragraphs 1 through 24 above, and incorporates them as part hereof.

26. That the Defendant JAMES STRAIT was careless and negligent in the operation of the semi tractor-trailer, including but not limited to one or more of the following ways:

- a. Failing to maintain a reasonable control of the tractor-trailer;
- b. Failing to operate the tractor-trailer in a safe and reasonable manner;
- c. Failing to take evasive maneuvers in order to avoid collision;
- d. Failing to yield to other drivers on the roadway;
- e. Operated the tractor-trailer aggressively and without regard for the health and safety of others upon the roadway;
- f. Failing to keep a proper look out for warnings, other vehicles, distance, roadway space, and obstructions;
- g. Failing to ensure that he had adequate line-of-sight of other vehicles and obstructions in his path;
- h. Failing to maintain operation of the tractor-trailer of the weight of the truck and the vehicle's acceleration and deceleration mobility, maneuvering distance, and line-of-sight;
- i. Operating the truck without adequate training and experience;
- j. Violation of applicable state and federal statutes; and/or

k. Violation of applicable city and local ordinances

27. On July 18, 2022, the Defendant, JAMES STRAIT, was negligent per se in the operation of the tractor-trailer in a manner that violated federal, state, or local laws; statutes; codes; regulations; or ordinances pertaining to the safe operation of motor vehicles and/or commercial-motor vehicles upon the roadway.

28. As a direct and proximate result of the foregoing crash and the conduct of JAMES STRAIT, CARLITA MCCRAY was physically injured, suffered emotional distress; sustained other permanent and severe personal injuries; she incurred and will incur ambulance, hospital, diagnostic, surgical, therapeutic, pharmaceutical, and other medical expenses; she suffered and will suffer physical pain, mental suffering, terror, fright, loss of enjoyment of life, and permanent impairment; she lost time or wages and impairment of her earnings capacity; and she incurred other injuries and damages of a personal and pecuniary nature.

WHEREFORE, the Plaintiff, CARLITA MCCRAY, prays for judgment against the Defendant, JAMES STRAIT, in a just and proper sum, for compensatory damages, in an amount to be determined herein, pre-judgment interest and post-judgment interest, for the costs of this action, and for any and all other relief that the Court and Jury may deem proper under the circumstances.

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COUNT II – RESPONDEAT SUPERIOR

Comes now the Plaintiff, CARLITA MCCRAY, by counsel, KATHERINE S. SARKISIAN of SARKISIAN, SARKISIAN & ASSOCIATES, P.C., and for her cause of action against the Defendant, TJ EXPRESS LLP. alleges, and states as follows:

29. That the Plaintiff, CARLITA MCCRAY, re-alleges the allegations contained in Paragraphs 1 through 28 above, and incorporates them as part hereof.
30. That at all times relevant herein, the Defendant, JAMES STRAIT, who negligently, and/or carelessly operated the semi tractor-trailer, was an employee and/or agent of TJ EXPRESS LLP.
31. That at all times relevant the Defendant, JAMES STRAIT, was acting within the course and scope of his employment and/or agency with TJ EXPRESS LLP.
32. That at all times relevant herein, the Defendant, TJ EXPRESS LLP. was the registered owner/operator, lessors, lessees or otherwise of the semi-tractor trailer being operated by the Defendant JAMES STRAIT, who was its employee and/or agent under its direct control and supervision.
33. As a direct and proximate result of the foregoing crash and the conduct of TJ EXPRESS LLP., CARLITA MCCRAY was physically injured, suffered emotional distress; sustained other permanent and severe personal injuries; she incurred and will incur ambulance, hospital, diagnostic, surgical, therapeutic, pharmaceutical, and other medical expenses; she suffered and will suffer physical pain, mental suffering, terror, fright, loss of enjoyment of life, and permanent impairment; she lost time or wages and impairment of his earnings capacity; and she incurred other injuries and damages of a personal and pecuniary nature.

34. That TJ EXPRESS LLP. is vicariously liable for the negligence and/or carelessness of its employee and/or agent, JAMES STRAIT

WHEREFORE, the Plaintiff, CARLITA MCCRAY, prays for judgment against the Defendant, TJ EXPRESS LLP. in a just and proper sum, for compensatory damages, in an amount to be determined herein, pre-judgment interest and post-judgment interest, for the costs of this action, and for any and all other relief that the Court and Jury may deem proper under the circumstances.

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COUNT III - NEGLIGENCE, TRAINING, SUPERVISION AND RETENTION

Comes now the Plaintiff, CARLITA MCCRAY, by counsel, KATHERINE S. SARKISIAN and KATHERINE S. SARKISIAN, of SARKISIAN, SARKISIAN & ASSOCIATES, P.C., and for her cause of action against the Defendant, TJ EXPRESS LLP, alleges and states as follows:

35. That the Plaintiff, CARLITA MCCRAY, re-alleges the allegations contained in Paragraphs 1 through 34 above, and incorporates them as part hereof.

36. That TJ EXPRESS LLP owed the general public, including the Plaintiff, a duty to determine the qualifications of its employees and agents including, but not limited to:

- a. Adequately evaluating applicants before hiring them as truck drivers;
- b. Adequately training and supervising these drivers; and
- c. Adequately evaluating these employee's job performance to discharge any incompetent or negligent employee before he injured the public or property.

37. That TJ EXPRESS LLP breached these duties to the general public, including the Plaintiff, by its negligent and careless hiring, training, supervising, and retaining of JAMES STRAIT who was unqualified, incompetent, and/or negligent and careless.

38. That as a proximate result of the aforementioned breaches, the Plaintiff, CARLITA MCCRAY, sustained physical injuries, suffered emotional distress and sustained other permanent and severe personal injuries; she incurred and will incur ambulance, hospital, diagnostic, surgical, therapeutic, pharmaceutical, and other medical expenses; she suffered and will suffer physical pain, mental suffering, terror, fright, loss of enjoyment of life, and permanent impairment; she lost time or wages and impairment of her earnings capacity; and she incurred other injuries and damages of a personal and pecuniary nature.

WHEREFORE, the Plaintiff, CARLITA MCCRAY, prays for judgment against the Defendant, TJ EXPRESS LLP, in a just and proper sum, for the costs of this action, for pre-judgment interest, post-judgment interest and for all other just and proper relief.

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MOTION FOR TRIAL BY JURY

Plaintiff by counsel, requests a trial by jury on all counts triable by a jury.

Respectfully submitted,

SARKISIAN, SARKISIAN & ASSOCIATES PC

Attorney for Plaintiff

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